

HOUSE No. 3484

The Commonwealth of Massachusetts

PRESENTED BY:

Patricia A. Duffy, (BY REQUEST)

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act limiting tech radiation in anchor institutions.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Kirstin Beatty</i>	<i>149 Central Park Drive, Holyoke, MA 01040</i>	<i>1/17/2025</i>

HOUSE No. 3484

By Representative Duffy of Holyoke (by request), a petition (accompanied by bill, House, No. 3484) of Kirstin Beatty for legislation to limit non-ionizing radiation from technology in anchor institutions and for an investigation by a special commission (including members of the General Court) relative to changes that foster hard-wired communication and reduced exposure to electromagnetic radiation. Telecommunications, Utilities and Energy.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act limiting tech radiation in anchor institutions.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. The legislature finds and confirms all of the following:-

2 Whereas, the scientific literature reveals serious threats to life from current wireless
3 exposures such as numerous studies finding damage to sperm and ovaries; numerous studies
4 finding DNA damage that can cause germ line mutations in following generations; and infertility
5 in mice after a few generations of wireless radiation exposure (Magdas & Xenos, 1997).

6 Whereas, the scientific literature indicates that exposure to even extremely low power
7 density non-ionizing radiation can cause a cascade of effects in more than one way such as
8 through free radical formation, interference with DNA repair, impairment of cell membranes,
9 and enhancement of genotoxic effects of other agents, all with a Russian Roulette of domino
10 effects on hormones, enzymes, tissues, etc. -- effects can lead to poor memory memory,
11 difficulty sleeping, fatigue, and other symptoms (Saravanamuttu & Dorairaj 2016); disease such

as Alzheimer's (Davanipour & Sobel 2009); or damage agricultural fertility (Adebayo, Adeeyo, Omomowo 2014).

Resolved, that the policy goals of this act are to reduce exposure to radiation from 0 hertz through 300 gigahertz emitted by technology by directing authorities in anchor institutions to recommend limits, provide guidance, and provide plans for graduated reductions in such exposures; to explicitly require public education to hard-wire facilities and to provide age-appropriate education on reducing exposures in grades 2 through 12 and scientific grounds from grade 6 forward.

SECTION 2. The Commonwealth of Massachusetts shall limit non-ionizing radiation from technology in anchor institutions under the jurisdiction of the Commonwealth or the Commonwealth's towns or municipalities. Anchor institutions refers to schools, higher education entities, government entities, public safety entities, medical centers, libraries, and public housing.

(a) All relevant state and municipal agencies, boards, quasi-public agencies with jurisdiction of these public anchor institutions shall, within their respective jurisdiction to the public anchor institutions:

(1) recommend limiting non-ionizing radiation exposures from technology;

(2) provide easily accessible guidance, training, education, and information on how best to reduce and monitor exposures, including with respect to both wireless and wired services, or provide this information by referencing this information as provided by an agency or agencies of the Commonwealth;

(3) set quality control requirements for a graduated program to reduce and monitor existing non-ionizing radiation exposures, while still ensuring access remains where needed for telecommunications and broadband services;

(4) where feasible, require migration from wireless to wired services;

(5) adopt a preference for bids, products, and processes that minimize non-ionizing radiation from wireless, and further specify this preference in contractual negotiations;

(6) where feasible and when useful to minimize incidental non-ionizing radiation exposures, create new systems, regulations, evaluations, standards and procedures that rely less on technology; minimize trivial technology use; and minimize trivial data collection;

(7) set requirements for visible, clear notification of hotspots and other indoor and outdoor wireless antennas which lack fencing; and

(8) choose practices that most quickly provide wired access that minimize non-ionizing radiation, such as wiring only areas that need access or creating communal rooms for wired connectivity and choosing connectors and equipment that minimize leakage and disruption of power quality; and

(9) when migrating to wired services or minimizing wireless non-ionizing radiation, adopt the ALARA principle, as low as reasonably achievable, and the ASARA principle, as safe as reasonably achievable, with regard to all non-ionizing radiation exposures.

(b) To assist with the process described in subsection (a) of this section, the governor shall form a small team of experts who have significant experience in the field of reducing non-

ionizing radiation from wireless and are qualified to provide support with training and efforts to reduce exposures.

(c) Without setting limits on above subsection (a), the Commonwealth shall further explicitly require the following take place promptly and expeditiously, with a focus on reducing exposures from wireless non-ionizing radiation in a way that best reduces all non-ionizing radiation exposures:

(1) Public higher education institutions shall insure that wireless connectivity, including for entertainment and other than infrared remotes, in dormitories is substituted with wired alternatives that best minimize non-ionizing radiation exposures, and after this proceed to provide the same wired service across the rest of the campus.

(3) Public preK - 12 schools shall be required that (i) if using WiFi, WiFi is only to transmit when in use and within elementary schools only in the administrative areas; (ii) paper-based testing be preferred over computer testing, including for state-mandated tests , except where a disability requires use of a computer; (iii) mandates for student technology use be limited to opt-in, extracurricular courses in secondary education, such as computer programming or work force software training; (iv) the Secretary of Education work with the legislature to prepare a plan to most cost-effectively provide wired services where needed that best minimizes non-ionizing radiation.

(c) The attorney general shall enforce good faith compliance in this section through adjudication of complaints alleging such violations in accordance with chapter 93. This remedy shall not be exclusive and shall be in addition to all other causes of action and other remedies and penalties provided by law.

SECTION 3. Section 1 of chapter 25C is hereby amended by striking the words ‘without regard to any transmission media or technology’ and inserting in place the following words:-

“with respect to the transmission media and technology that best reduces electromagnetic radiation exposures from 0 to at least 300 GHz”

SECTION 4. Chapter 71 of the General Laws, as appearing in the 2018 Official Edition, is hereby amended by adding the following section:-

Section 98. The department of elementary and secondary education shall require an educational k-12 science and technology standard to the effect that students shall learn about the biological impacts of electromagnetic radiation ranging from 0 to 300 gigahertz emitted by natural radiation and modern technologies, including digital and electronic products and antennas. These educational standards shall be age-appropriate, focusing on scientific grounds for biological effects of non-thermal and thermal exposures in grades 6 and continuing through grade 12. Additionally, within the science and technology standard and within standards for health education, there shall be age-appropriate information on reducing electromagnetic exposures from wireless and electrical technologies beginning in grade 2 and continuing through grade 12 .

SECTION 5. (a) Resolved, there shall be a special commission to examine the General Laws to recommend changes that foster hard-wired communication and reduced exposure to electromagnetic radiation from 0 hertz through 300 gigahertz in alignment with section 1 of this Act.

(b) The special commission shall consist of the following members or their designees: the Commissioner of the department of telecommunications and cable; the senate and house

chairmen of the Joint Committee on Telecommunication, Utilities and Energy who shall serve as the additional co-chairs; (1) member who shall be appointed by the governor with expertise in reducing such exposures, (1) member appointed by the Senate President; and (1) member appointed by the Speaker of the House.

(d) The special commission shall file an initial report of its recommendations and drafts of proposed legislation or regulations, if any, with the clerks of the house of representatives and the senate, the President of the Senate, The Speaker of the House of Representatives, the Governor and the chairs of the house and senate committees on ways and means not later than December 31, 2026. The special commission shall file a final report providing a full report regarding said subsection (b) not later than March 1, 2027.

SECTION 6. This act shall take effect immediately upon passage.